



Bill Number: H.B. 2428

Shope Floor Amendment

Reference to: House engrossed bill

Amendment drafted by: Leg. Council

FLOOR AMENDMENT EXPLANATION

1. Specifies that an applicant's election to participate in any program that results in the certification of emission reduction credits (ERCs) by a county is voluntary.
2. Prohibits a control officer, if after the general effective date, participation of an on-road vehicle fleet in the ERC program becomes mandatory pursuant to an act of the Arizona Legislature, administrative rule or State Implementation Plan commitment, from certifying any new surplus ERCs that are mobile sources within the county's jurisdiction.
3. Specifies that only mobile source fleets with a base of operations in a nonattainment area are eligible for certification of ERCs by a county.
4. Makes technical changes.

SHOPE FLOOR AMENDMENT
SENATE AMENDMENTS TO H.B. 2428
(Reference to House engrossed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

[GREEN STRIKEOUT IN BRACKETS] indicates new text removed from statute or previously enacted session law.

[Green strikeout in brackets] indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

<<Green strikeout in carets>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Section 49-402, Arizona Revised Statutes, is amended to
3 read:

4 49-402. State and county control

5 A. EXCEPT AS PROVIDED IN SUBSECTION G OF THIS SECTION, the
6 department shall have original jurisdiction over such sources, permits and
7 violations that pertain to:

8 1. Major sources in any county that has not received approval from
9 the administrator for new source review under the clean air act and
10 prevention of significant deterioration under the clean air act.

11 2. Smelting of metal ore.

12 3. Petroleum refineries.

13 4. Coal fired electrical generating stations.

14 5. Portland cement plants.

15 6. Air pollution by portable sources.

16 7. Air pollution by mobile sources for the purpose of regulating
17 those sources as prescribed by article 5 of this chapter and consistent
18 with the clean air act.

19 8. Sources that are subject to title V of the clean air act and
20 that are located in a county for which the administrator has disapproved
21 that county's title V permit program if the department has a title V
22 program that has been approved by the administrator. On approval of that
23 county's title V permit program by the administrator, the county shall
24 resume jurisdiction over those sources.

25 B. Except as specified in subsection A of this section, the review,
26 issuance, administration and enforcement of permits issued pursuant to
27 this chapter shall be by the county or multi-county air quality control
28 region pursuant to the provisions of article 3 of this chapter. After the
29 director has provided prior written notice to the control officer

1 describing the reason for asserting jurisdiction and has provided an
2 opportunity to confer, the county or multi-county air quality control
3 region shall relinquish jurisdiction, control and enforcement over such
4 permits as the director designates and at such times as the director
5 asserts jurisdiction at the state level. The order of the director ~~which~~
6 ~~THAT~~ asserts state jurisdiction shall specify the matters, geographical
7 area, or sources over which the department shall exercise jurisdiction and
8 control. Such state authority shall then be the sole and exclusive
9 jurisdiction and control to the extent asserted, and ~~the provisions of~~
10 this chapter shall govern, except as provided in this chapter, until
11 jurisdiction is surrendered by the department to such county or region.

12 C. Portable sources under jurisdiction of the department under
13 subsection A, paragraph 6 of this section may be required to file notice
14 with the director and the control officer who has jurisdiction over the
15 geographic area that includes the new location before beginning operations
16 at that new location.

17 D. Notwithstanding any other law, a permit issued to a ~~state~~
18 ~~regulated~~ ~~STATE-REGULATED~~ source shall include the emission standard or
19 standard of performance adopted pursuant to section 49-479, if such
20 standards are more stringent than those adopted by the director and if
21 such standards are specifically identified as applicable to the permitted
22 source or a component of the permitted source. Such standards shall be
23 applied to sources identified in subsection A, paragraph 2, 3, 4 or 5 of
24 this section only if the standard is formally proposed for adoption as
25 part of the state implementation plan.

26 E. The regional planning agency for each county ~~which~~ ~~THAT~~ contains
27 a vehicle emissions control area shall develop plan revisions containing
28 ~~transportation-related~~ ~~TRANSPORTATION-RELATED~~ air quality control measures
29 designed to attain and maintain primary and secondary ambient air quality
30 standards as prescribed by and within the time frames specified in the
31 clean air act. In developing the plan revisions, the regional planning
32 agency shall consider all of the following:

- 33 1. Mandatory employee parking fees.
- 34 2. Park and ride programs.
- 35 3. Removal of on-street parking.
- 36 4. Ride share programs.
- 37 5. Mass transit alternatives.
- 38 6. Expansion of public transportation systems.
- 39 7. Optimizing freeway ramp metering.
- 40 8. Coordinating traffic signal systems.
- 41 9. Reduction of traffic congestion at major intersections.
- 42 10. ~~Site-specific~~ ~~SITE-SPECIFIC~~ transportation control measures.
- 43 11. Reversible lanes.
- 44 12. Fixed lanes for buses and carpools.
- 45 13. Encouragement of pedestrian travel.
- 46 14. Encouragement of bicycle travel.
- 47 15. Development of bicycle travel facilities.

1 16. Employer incentives regarding ride share programs.
2 17. Modification of work schedules.
3 18. Strategies for controlling the generation of air pollution by
4 nonresidents of nonattainment or maintenance areas.
5 19. Use of alternative fuels.
6 20. Use of emission control devices on public diesel powered
7 vehicles.
8 21. Paving of roads.
9 22. Restricting off-road vehicle travel.
10 23. Construction site air pollution control.
11 24. Other air quality control measures.
12 F. Each regional planning agency shall consult with the department
13 of transportation to coordinate the plans developed pursuant to subsection
14 E of this section with transportation plans developed by the department of
15 transportation pursuant to any other law.
16 G. AFTER RECEIVING A VOLUNTARY REQUEST FROM AN APPLICANT, A COUNTY
17 MAY CLAIM CONCURRENT JURISDICTION OVER BOTH OF THE FOLLOWING FOR THE SOLE
18 PURPOSE OF ISSUING, REVISING OR ENFORCING A PERMIT TO CERTIFY EMISSION
19 REDUCTION CREDITS PURSUANT TO SECTION 49-410:
20 1. COMPONENTS OF A PORTABLE SOURCE WITHIN THE COUNTY'S
21 JURISDICTION.
22 2. MOBILE SOURCES WITHIN THE COUNTY'S JURISDICTION.
23 H. NOTWITHSTANDING ANY OTHER LAW, AN APPLICANT'S ELECTION TO
24 PARTICIPATE IN ANY PROGRAM THAT RESULTS IN THE CERTIFICATION OF EMISSION
25 REDUCTION CREDITS PURSUANT TO SUBSECTION G OF THIS SECTION IS VOLUNTARY.
26 IF, AFTER THE EFFECTIVE DATE OF THIS AMENDMENT TO THIS SECTION,
27 PARTICIPATION OF AN ON-ROAD VEHICLE FLEET IN THE EMISSION REDUCTION CREDIT
28 PROGRAM BECOMES MANDATORY PURSUANT TO AN ACT OF THE LEGISLATURE,
29 ADMINISTRATIVE RULE OR STATE IMPLEMENTATION PLAN COMMITMENTS, A CONTROL
30 OFFICER MAY NOT CERTIFY ANY NEW SURPLUS EMISSION REDUCTION CREDITS AS
31 PROVIDED IN SUBSECTION G, PARAGRAPH 2 OF THIS SECTION. ONLY MOBILE SOURCE
32 FLEETS WITH A BASE OF OPERATIONS IN A NONATTAINMENT AREA ARE ELIGIBLE FOR
33 CERTIFICATION PURSUANT TO SUBSECTION G, PARAGRAPH 2 OF THIS SECTION.]
34 ~~[H.]~~ [I.] AFTER A COUNTY ISSUES A PERMIT OR PERMIT REVISION THAT
35 CERTIFIES EMISSION REDUCTION CREDITS PURSUANT TO SUBSECTION G OF THIS
36 SECTION, THE PERMIT OR PERMIT REVISION ARE BINDING ON THE APPLICANT.
37 Sec. 2. Section 49-426, Arizona Revised Statutes, is amended to
38 read:
39 49-426. Permits; duties of director; exceptions;
40 applications; objections; fees; definitions
41 A. A permit shall:
42 1. Be issued by the director in compliance with the terms of this
43 section.
44 2. Be required for any person seeking a compliance extension
45 pursuant to section 49-426.03, subsection B, paragraph 3 and section
46 112(a)(5) of the clean air act and for any person beginning actual

1 construction of or operating any source, except as prescribed in
2 subsection B of this section or section 49-426.01.

3 B. ~~The provisions of~~ This section shall not apply to motor
4 vehicles, to agricultural vehicles or agricultural equipment used in
5 normal farm operations, or to fuel burning equipment ~~which~~ THAT, at a
6 location or property other than a one or two family residence, is rated at
7 less than one million British thermal units per hour. The director may
8 establish by rule additional sources or classifications of sources for
9 which a permit is not required and pollutant-emitting activities and
10 emissions units at permitted sources that are not required to be included
11 in the permit. The director shall not adopt such rules unless the
12 director makes a written finding with supporting facts that the exempted
13 source, class of sources, pollutant-emitting activities or emissions units
14 will have an insignificant adverse impact on air quality. In adopting
15 these rules, the director may consider any rule that is adopted by the
16 administrator pursuant to section 502 of the clean air act and that
17 exempts one or more source categories from the requirement to obtain a
18 permit under title V of the clean air act. IF AN APPLICANT VOLUNTARILY
19 SUBMITS A PERMIT APPLICATION, SECTION 49-104 AND THIS SUBSECTION DO NOT
20 PRECLUDE THE DIRECTOR OR THE CONTROL OFFICER FROM ISSUING A PERMIT OR
21 PERMIT REVISION THAT REQUIRES REDUCTIONS IN EMISSIONS FROM MOTOR VEHICLES,
22 AGRICULTURAL VEHICLES OR EQUIPMENT, MOBILE SOURCES OR NONROAD ENGINES IN A
23 PERMIT THAT THE APPLICANT AGREED TO AT THE TIME OF ISSUANCE.

24 C. Every application for a permit shall be filed in the manner and
25 form prescribed by the director, and shall contain all the information
26 necessary to enable the director to make the determination to grant or
27 deny such application. The director shall establish by rule requirements
28 for permit applications, including the standard application form for
29 title V sources. The director shall establish by rule requirements for
30 applications for general permits. An application for a permit issued
31 pursuant to title V of the clean air act shall include a compliance plan
32 that describes how the applicant will comply with all of the applicable
33 requirements of this chapter and the clean air act, including a schedule
34 of compliance and a schedule under which progress reports will be
35 submitted to the director at least every six months. The director may
36 require that such application include all sources that are used or to be
37 used by the applicant in a certain process or a single facility or
38 location. Before acting on an application for a permit, the director may
39 require the applicant to furnish further information or further plans or
40 specifications. The director shall act, within a reasonable time, on such
41 application and shall notify the applicant in writing of the proposed
42 approval or denial of such application, except that the director may have
43 a reasonable period of time in which to gather information, inspect
44 premises, and issue such permits. The director shall adopt rules that
45 establish procedures for determining when applications are complete, for
46 processing applications and for reviewing permit actions. The director
47 shall also establish by rule criteria for determining reasonable times for

1 processing permit applications. Rules adopted pursuant to this subsection
2 for permits issued pursuant to title V of the clean air act shall conform
3 to the requirements of section 505(a) of the clean air act.

4 D. The director shall give notice of a proposed permit for a source
5 required to obtain a permit pursuant to title V of the clean air act once
6 each week for two consecutive weeks in two newspapers of general
7 circulation in the county in which the source is or will be located. The
8 notice shall describe the proposed permit and air contaminants to be
9 emitted and shall state that any person may submit comments on the
10 proposed permit and may request a public hearing. The director shall
11 require the applicant at the time of the first notice to post the site
12 where the source is or may be located. If permitted by federal, state and
13 local law, the posting shall be prominently placed at a site that is under
14 the applicant's legal control and that is adjacent to the nearest public
15 roadway. The posting shall be visible to the public using the public
16 roadway and shall contain the information in the notice that is published
17 by the director. If a public hearing is requested, the director shall
18 require the applicant to place an additional posting that provides notice
19 of the public hearing. A posting shall be maintained until the public
20 comment period on the proposed permit is closed. The director shall make
21 available to the public notices of proposed permits. Each public notice
22 that is issued under this chapter shall be mailed to the permit applicant,
23 to the affected federal, state and local agencies and to those persons who
24 have requested in writing copies of proposed permit action notices.
25 During the public comment period, any person may submit a request to the
26 department to conduct a public hearing for the purpose of receiving oral
27 or written comments on the proposed permit. A written comment shall state
28 the name and mailing address of the person, shall be signed by the
29 person, ~~his~~ OR THE PERSON'S agent or ~~his~~ attorney and shall clearly set
30 forth reasons why the permit should or should not be issued. Grounds for
31 comment are limited to whether the proposed permit meets the criteria for
32 issuance prescribed in this section or in section 49-427. The department
33 shall consider and prepare written responses to all comments received
34 during the public comment period, including comments made at a public
35 hearing conducted by the department. At the time a final permit decision
36 is made, copies of the department's responses shall be made available to
37 the applicant and any person who commented on the proposed permit.

38 E. Permits or revisions issued pursuant to this section or section
39 49-426.01 may be issued subject to such terms and conditions as are
40 consistent with the requirements of this article, article 1 of this
41 chapter and the clean air act and are found by the director to be
42 necessary, following public notice and an opportunity for a public hearing
43 as provided in subsection D or H of this section or in section 49-426.01,
44 and subject to payment of a reasonable fee to be determined as follows:

45 1. For a source that is required to obtain a permit pursuant to
46 title V of the clean air act, the director shall establish by rule a
47 system of fees that is consistent with and equivalent to that prescribed

1 by section 502 of the clean air act. These rules shall prescribe
2 procedures for increasing the fee each year by the percentage, if any, by
3 which the consumer price index for the immediately preceding calendar year
4 exceeds the consumer price index for calendar year 1989.

5 2. For a facility that is required to obtain a permit pursuant to
6 this chapter but that is not required to obtain a permit pursuant to title
7 V of the clean air act, the director shall determine a fee based on the
8 total actual cost of processing the permit application, but not ~~exceeding~~
9 ~~twenty-five thousand dollars~~ MORE THAN \$25,000.

10 The director shall establish an annual inspection fee, not to exceed the
11 average cost of inspection. The director shall adopt, by rule, criteria
12 for determining fees and for public hearings.

13 F. EXCEPT AS PROVIDED IN SUBSECTION Q OF THIS SECTION, permits
14 issued pursuant to this section shall be issued for a period of five
15 years.

16 G. Except as provided in subsection H of this section, any person
17 burning used oil, used oil fuel, hazardous waste or hazardous waste fuel
18 in any machine, incinerator or device shall first obtain a permit from the
19 director. Any permit issued by the director under this subsection shall
20 contain, at a minimum, conditions governing:

21 1. Limitations on the types, amounts and feed rates of used oil,
22 used oil fuel, hazardous waste or hazardous waste fuel ~~which~~ THAT may be
23 burned.

24 2. The frequency and types of fuel testing to be conducted by the
25 person.

26 3. The frequency and type of emissions testing or monitoring to be
27 conducted by the person.

28 4. Requirements for ~~record keeping~~ RECORDKEEPING and reporting.

29 5. Numeric emission limitations expressed in pounds per hour and
30 tons per year for air contaminants to be emitted from the facility burning
31 off-specification used oil fuel, hazardous waste or hazardous waste fuel.

32 H. The director may issue a general permit for a defined class of
33 facilities if the class contains a large number of facilities that are
34 substantially similar in nature and that have substantially similar
35 emissions and if the following conditions are met:

36 1. A general permit shall comply with all of the requirements for
37 permits prescribed by this section except for the requirements of
38 subsection D of this section and shall be consistent with the clean air
39 act.

40 2. The director shall give notice of the proposed general permit
41 once each week for two consecutive weeks in a newspaper of general
42 circulation in each county. The notice shall describe the proposed
43 general permit, the general class of sources that would be subject to the
44 proposed permit and the air contaminants to be emitted. The notice shall
45 also state that any person may submit comments on the proposed general
46 permit and may request a public hearing. A written comment shall state
47 the name of the person and the person's agent or attorney and shall

1 clearly set forth reasons why the general permit should or should not be
2 issued. Grounds for comment are limited to whether the proposed general
3 permit meets the criteria for issuance prescribed in this section or
4 section 49-427.

5 3. On issuance of a general permit, any person seeking to permit a
6 source under this subsection shall submit an application pursuant to
7 subsection C of this section.

8 4. If the director approves an application to be permitted under a
9 general permit, the director shall provide notice of the approval in a
10 newspaper of general circulation in the county in which the source is or
11 will be located.

12 5. If a person violates a general permit, the director may require
13 the source to obtain a permit pursuant to subsection A of this section.

14 6. A general permit may be revoked or revised at any time by the
15 director if necessary to comply with this chapter. If the director
16 revokes or revises a general permit, the director shall notify all persons
17 whose sources are affected by the revocation or revision and shall include
18 notice of procedures to obtain a permit pursuant to subsection A of this
19 section or notice of procedures for compliance with the revisions.

20 7. The director by rule shall adopt procedures for the issuance of
21 general permits.

22 8. The director may adopt conditions in a general permit applicable
23 to sources located in a specified geographic area either independently of
24 or ~~upon~~ **ON** petition by a county air pollution control officer.

25 I. Permits issued pursuant to this section for a source required to
26 obtain a permit under title V of the clean air act shall contain all of
27 the following:

28 1. Conditions reflecting all applicable requirements of this
29 article and rules adopted pursuant to this article.

30 2. Enforceable emission limitations and standards.

31 3. A schedule for compliance, if applicable.

32 4. The requirement to submit at least every six months the results
33 of any required monitoring.

34 5. Any other conditions that are necessary to assure compliance
35 with this article and the clean air act, including the applicable
36 implementation plan.

37 J. The director may refuse to issue any permit to any source
38 subject to the requirements of title V of the clean air act if the
39 administrator objects to its issuance in a timely manner as prescribed
40 under title V of the act.

41 K. If an applicant has submitted a timely and complete application
42 for a permit required under this section, but final action has not been
43 taken on that application, failure to obtain a permit shall not be a
44 violation of this chapter unless the delay in final action is due to the
45 failure of the applicant to submit information required or requested to
46 process the application. This subsection does not apply to any person
47 required to obtain a permit before commencing construction of a source as

1 required under this section or any person seeking a permit revision as
2 provided under section 49-426.01.

3 L. The director may issue a single permit authorizing emissions
4 from similar operations at multiple temporary locations, if the permit
5 includes conditions that will assure compliance with all applicable
6 requirements of this chapter and the clean air act at all locations. Any
7 permit issued pursuant to this subsection shall require the applicant to
8 notify the director in advance of each change in location. In issuing a
9 single permit, the director may require a separate permit fee for
10 operations at each location.

11 M. In the case of a permit with a term of three or more years
12 issued pursuant to the requirements of title V of the clean air act to a
13 major source, the director shall require revisions to the permit to
14 incorporate applicable standards and regulations adopted by the
15 administrator pursuant to the clean air act after the issuance of the
16 permit. The director shall require any revisions as expeditiously as
17 practicable, but not later than eighteen months after the promulgation of
18 such standards and regulations. No permit revision shall be required if
19 the effective date of standards and regulations is after the expiration of
20 the permit. Any permit revision required pursuant to this subsection
21 shall be treated as a permit renewal.

22 N. Any permit issued pursuant to the requirements of this article
23 and title V of the clean air act to a unit subject to ~~the provisions of~~
24 title IV of the clean air act shall include conditions prohibiting all of
25 the following:

26 1. Annual emissions of sulfur dioxide in excess of the number of
27 allowances to emit sulfur dioxide held by the owners or operators of the
28 unit or by the designated representative of the owners or operators.

29 2. Amounts in excess of applicable emission rates.

30 3. The use of any allowance prior to the year for which it was
31 allocated.

32 4. Contravention of any other provision of the permit.

33 O. The director shall adopt a rule specifying the notice, public
34 participation requirements and other permit issuance procedures for
35 permits that are not issued pursuant to title V of the clean air act.

36 P. In determining whether a permitting threshold established
37 pursuant to this section applies to an existing source, the director shall
38 exclude particulate matter that is not subject to a national ambient air
39 quality standard under the clean air act.

40 Q. PERMITS AND PERMIT REVISIONS THAT AN APPLICANT HAS VOLUNTARILY
41 APPLIED FOR AND THAT ARE ISSUED BY THE DIRECTOR OR CONTROL OFFICER FOR THE
42 SOLE PURPOSES OF CERTIFYING EMISSION REDUCTION CREDITS PURSUANT TO SECTION
43 49-410 SHALL:

44 1. REMAIN SUBJECT TO ALL APPLICABLE RULES, CONDITIONS AND
45 ENFORCEMENT PROVISIONS OF THE PERMIT PROGRAM PURSUANT TO WHICH THE
46 PERMITTING AUTHORITY ISSUES THE PERMIT.

1 ~~[2. ALLOW THE PERMITTING AUTHORITY TO MAINTAIN THE DISCRETION TO~~
2 ~~ISSUE THE PERMIT.]~~
3 ~~[2. BE ISSUED AT THE DISCRETION OF THE PERMITTING AUTHORITY.]~~
4 3. BE FOR A TERM OF NOT MORE THAN TWENTY YEARS.
5 R. FOR THE PURPOSES OF THIS SECTION:
6 1. "CONTROL OFFICER" HAS THE SAME MEANING PRESCRIBED IN SECTION
7 49-471.
8 2. "NONROAD ENGINES" HAS THE SAME MEANING PRESCRIBED IN SECTION 216
9 OF THE CLEAN AIR ACT.
10 Sec. 3. Section 49-480, Arizona Revised Statutes, is amended to
11 read:
12 49-480. Permits: fees
13 A. The board of supervisors may adopt a program for the review,
14 issuance, revision, administration and enforcement of permits and for
15 public review of proposed permits for sources that are subject to section
16 49-426, ~~subsection A~~, that are not under the jurisdiction of the state
17 pursuant to section 49-402 and that are not otherwise exempt pursuant to
18 section 49-426, subsection B and subsection K of this section. This
19 program shall include provisions for administration, inspection and
20 enforcement of general permits issued pursuant to section 49-426,
21 subsection H and subsection J of this section.
22 B. Procedures for the review, issuance, revision and administration
23 of permits issued pursuant to this section and required to be obtained
24 pursuant to title V of the clean air act, including sources that emit
25 hazardous air pollutants shall be substantially identical to procedures
26 for the review, issuance, revision and administration of permits issued by
27 the department under this chapter. Such procedures shall comply with the
28 requirements of sections 165, 173 and 408 and titles III and V of the
29 clean air act and implementing regulations for sources subject to titles
30 III and V of the clean air act. Procedures for the review, issuance,
31 revision and administration of permits issued pursuant to this section and
32 not required to be obtained pursuant to title V of the clean air act shall
33 impose no greater procedural burden on the permit applicant than
34 procedures for the review, issuance, revision and administration of
35 permits issued by the department under sections 49-426 and 49-426.01 and
36 other applicable provisions of this chapter.
37 C. ~~Upon~~ ON adoption of a permit program by the board of supervisors
38 pursuant to this section, no person may begin actual construction, operate
39 or make a modification to any source subject to the permit program without
40 complying with the requirements of that program.
41 D. Permits issued pursuant to a program adopted under this section
42 are subject to payment of a reasonable fee to be determined as follows:
43 1. For any source required to obtain a permit under title V of the
44 clean air act, the board of supervisors shall establish by rule a system
45 of fees consistent with and equivalent to that prescribed under section
46 502 of the clean air act. Such system shall prescribe procedures for
47 increasing the fee each year by the percentage, if any by which the

1 consumer price index for the most recent calendar year ending before the
2 beginning of such year exceeds the consumer price index for the calendar
3 year 1989.

4 2. For any facility subject to the permitting requirements of this
5 chapter but not required to obtain a permit under title V of the clean air
6 act, the board of supervisors shall determine a permit fee based on all
7 reasonable direct and indirect costs required to administer the permit,
8 but not ~~exceeding twenty-five thousand dollars~~ MORE THAN \$25,000.

9 The board of supervisors shall establish an annual inspection fee, not to
10 exceed the average cost of services.

11 E. ~~Funds~~ MONIES received for permits issued pursuant to this
12 section shall be deposited in a special public health fund and shall be
13 used by the control officer to defray the costs of implementing this
14 article.

15 F. Permits issued pursuant to this section for a source required to
16 obtain a permit under title V of the clean air act shall, and for a source
17 that is not required to obtain a title V permit may, contain all of the
18 following:

19 1. Conditions reflecting all applicable requirements of this
20 article and rules adopted pursuant to this article.

21 2. Enforceable emission limitations and standards.

22 3. A schedule for compliance, if applicable.

23 4. The requirement to submit at least every six months the results
24 of any required monitoring.

25 5. Any other conditions that are necessary to assure compliance
26 with this article and the clean air act, including the applicable
27 implementation plan.

28 G. The control officer may refuse to issue any permit to any
29 source, subject to the requirements of title V of the clean air act, if
30 the administrator objects to its issuance in a timely manner as prescribed
31 under title V of the act.

32 H. In the case of a permit with a term of three or more years
33 issued pursuant to the requirements of title V of the clean air act to a
34 major source, the control officer shall require revisions to the permit to
35 incorporate applicable standards and regulations adopted by the
36 administrator pursuant to the clean air act after the issuance of the
37 permit. The control officer shall require any revisions as expeditiously
38 as practicable but not later than eighteen months after the promulgation
39 of such standards and regulations. No permit revision shall be required
40 if the effective date of the standards and regulations is after the
41 expiration of the permit. Any permit revision required pursuant to this
42 subsection shall be treated as a permit renewal.

43 I. Except as provided in section 49-426, subsection B and
44 subsection A of this section, any person burning used oil, used oil fuel,
45 hazardous waste or hazardous waste fuel in any machine, incinerator or
46 device shall first obtain a permit from the control officer. Any permit

1 issued by the control officer under this subsection shall contain, at a
2 minimum, conditions governing:

3 1. Limitations on the types, amounts and feed rates of used oil,
4 used oil fuel, hazardous waste or hazardous waste fuel ~~which~~ THAT may be
5 burned.

6 2. The frequency and types of fuel testing to be conducted by the
7 person.

8 3. The frequency and type of emissions testing or monitoring to be
9 conducted by the person.

10 4. Requirements for ~~record keeping~~ RECORDKEEPING and reporting.

11 5. Numeric emission limitations expressed in pounds per hour and
12 tons per year for air contaminants to be emitted from the facility burning
13 used oil, used oil fuel, hazardous waste or hazardous waste fuel.

14 J. The board of supervisors may authorize by rule the control
15 officer to issue a general permit for a defined class of facilities if
16 that class of facilities has not been issued a general permit by the
17 director for sources in that county pursuant to section 49-426, subsection
18 H. The criteria for issuance of a general permit are those applicable to
19 the director pursuant to section 49-426, subsection G.

20 K. The board of supervisors may identify by rule sources or
21 classifications of sources for which a permit is not required and
22 pollutant-emitting activities and emissions units at permitted sources
23 that are not subject to inclusion in the permit. The criteria for
24 exemptions granted pursuant to this subsection are those applicable to
25 exemptions granted by the director pursuant to section 49-426,
26 subsection B.

27 L. In determining whether a permitting threshold established
28 pursuant to this section applies to an existing source, the control
29 officer shall exclude particulate matter that is not subject to a national
30 ambient air quality standard under the clean air act.

31 M. The board of supervisors may adopt a rule or ordinance that
32 establishes less burdensome permit procedures and requirements for permits
33 that are not required to be obtained pursuant to title V of the clean air
34 act. Until the effective date of a rule or ordinance adopted by a board
35 of supervisors pursuant to this section, the control officer, either on
36 the control officer's own initiative or on the request of a permit
37 applicant, may waive requirements that are not appropriate for non-title V
38 sources.

39 Enroll and engross to conform

40 Amend title to conform

THOMAS "T.J." SHOPE

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